

Contentious Chamber

Decision on the merits 91/2025 of June 5, 2025

File number: DOS-2018-05915

Subject: Information and transparency obligations, the right to erasure, and the position of the DPO

The Contentious Chamber of the Data Protection Authority;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "GDPR");

Having regard to the law of December 3, 2017, establishing the Data Protection Authority (hereinafter "the LCA");

Having regard to the internal regulations as approved by the Chamber of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Having regard to the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant";

Defendant 1:

Y1, represented by Me Liesbeth Weynants, hereinafter "Defendant 1";

Defendant 2:

Y2, represented by Me Gerrit Vandendriessche and Me Jan Clinck, hereinafter "Defendant 2".

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I. Facts and procedure

1.

The complainant was a client of Defendant 1, a group of nurseries in Flanders and Brussels.

In 2015, Defendant 1 entered into a contract with Defendant 2 for the collection of unpaid debts, as a member of Z (...), (...). Defendant 2 is a debt collection agency and carries out processing activities as described in the law of December 20, 2002, concerning amicable debt collection from consumers, hereinafter "the collection law"¹ and in the royal decree of February 17, 2005, regulating the registration of persons engaged in amicable debt collection activities and the guarantees these persons must have².

In 2016, Defendant 1 sent the complainant an invoice that remained unpaid and was subsequently forwarded to Defendant 2.

On February 14, 2017, Defendant 2 sent the complainant a demand for payment of an outstanding invoice from Defendant 1. The complainant responded on December 11, 2017, stating that Defendant 1's claim was unfounded and that Defendant 2 therefore had no legal basis to continue processing his data.

In 2017 and 2018, correspondence took place between the complainant and Defendant 2 regarding the invoice, its dispute, and the processing of personal data. The complainant requested the erasure of his personal data. Defendant 1 acknowledged that a billing error was the basis of the claim and canceled the unpaid amount.

On June 12, 2018, Defendant 2 informed the complainant that after obtaining information from Defendant 1, it had concluded that Defendant 1 had provided incorrect information. Defendant 2 apologized and indicated that it would cease any further collection efforts.

On June 18, 2018, the complainant reiterated his request for the erasure of his data.

On June 25, 2018, Defendant 2 informed the complainant that it had deleted all of the complainant's data from its database.

On September 14, 2018, and September 22, 2018, Defendant 2 sent new payment requests to the complainant for outstanding debts owed to Defendant 1. According to Defendant 2, these letters were sent accidentally due to a technical error and human error during the data deletion process. On one hand, there was a technical error in the process of deleting the complainant's data, following

1 Law of December 20, 2002, concerning amicable debt collection from consumers.

2 Royal decree of February 17, 2005, regulating the registration of persons engaged in amicable debt collection activities and the guarantees these persons must have.

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where a prior written request for recovery from Defendant 1 has not been removed. Since Defendant 2 was unable to link this request to a previous file or an ongoing file, a new recovery file was opened and new payment requests were sent to the complainant.

2.

On October 17, 2018, the complainant filed a complaint with the Data Protection Authority against Defendant 2.

3.

On November 8, 2018, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA and was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

4.

On November 27, 2018, the Contentious Chamber decided to request an investigation from the Inspection Service, pursuant to Articles 63, 2° and 94, 1° of the LCA.

5.

On November 27, 2018, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation was transmitted to the Inspection Service, along with the complaint and the inventory of documents.

6.

On May 5, 2021, the investigation by the Inspection Service was closed, the report was attached to the file, and it was forwarded by the Inspector General to the President of the Contentious Chamber (Art. 91, § 1 and § 2 of the LCA).

7.

On February 14, 2022, the Contentious Chamber decided, under Article 95, § 1, 1° and Article 98 of the LCA, that the file could be processed on the merits.

8.

On February 14, 2022, the concerned parties were informed by registered mail of the provisions referred to in Article 95, § 2 as well as Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

9.

On February 28, 2022, Defendant 2 submitted a reasoned objection requesting to change the language of the proceedings to Dutch.

10.

On March 18, 2022, the Contentious Chamber informed the parties that the language of the proceedings is Dutch, with the understanding that the parties may express themselves in French or Dutch during the proceedings before the Contentious Chamber, both in writing in their conclusions and orally during a possible hearing. It modified the deadlines in the schedule for conclusions.

11.

On December 23, 2024, the parties were informed that the hearing would take place on March 24, 2025.

12.

On March 24, 2025, the parties were heard by the Contentious Chamber.

13.

On April 17, 2025, the minutes of the hearing were submitted to the parties.

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14.

On April 23, 2025, the Contentious Chamber received some remarks from Defendant 2 regarding the minutes, which it decided to include in its deliberation.

II. Motivation Regarding Defendant 1

II.1. Preliminary Considerations

15. First, Defendant 1 asserts that the facts are prior to the entry into force of the GDPR, the LCA, and the LTD (law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data). The GDPR would therefore not apply.

16. The Contentious Chamber observes that Defendant 1 qualifies the conclusion of the contract between Defendant 1 and Defendant 2 as well as the recovery order as relevant facts. These occurred on September 7, 2015, and February 14, 2017, respectively. Given that the GDPR came into force on May 25, 2018, it indeed does not apply to these facts. However, the Contentious Chamber notes that the Inspection Service consulted the complainant's website on April 20, 2020, and April 27, 2021, to establish the first violation (see section II.2 of this decision) and received and consulted the register of processing activities on May 7, 2020, to establish the second violation (see section II.3 of this decision). These violations occurring after the entry into force of the GDPR lead the Contentious Chamber to conclude that the GDPR applies to these two alleged violations.

17. Second, Defendant 1 claims that the Inspection Service unlawfully extended its investigation mandate. According to Defendant 1, the findings of the Inspection Service resulted from investigations exceeding the scope of the complaint. The Contentious Chamber notes that the complainant himself also states in his conclusions that his complaint did not concern Defendant 1 but was aimed solely at Defendant 2.

18. In this regard, the Contentious Chamber refers to judgment 2022/AR/723 of June 14, 2023, from the Market Court, in which it is considered that companies must be aware that a single determined incident can lead to a comprehensive inspection and substantial control of compliance with the GDPR of a company or organization, which may in turn lead to sanctions for non-compliance with certain obligations of the GDPR that were not the original cause of the inspection. In this case, the Inspection Service found that Defendant 1 had to be identified as the data controller responsible for the data exchange on which the subsequent processing in the context of recovery was based. The Contentious Chamber believes that in light of the judgment

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2022/AR/723 of the Market Court, Defendant 1 does not demonstrate that the Inspection Service acted beyond the discretionary margin of its powers. The Contentious Chamber emphasizes in this regard that the investigative powers of the Inspection Service (articles 64 to 90 inclusive of the LCA) are not limited to a mere verification of the accuracy of the complaint's content. The investigative powers must indeed serve to examine compliance with the provisions regarding the protection of personal data. For this reason, the investigation must at least also be able to cover elements that are ancillary to the subject of the complaint.

II.2. Regarding the violation of articles 12.1, 13, and 14 of the GDPR by Defendant 1

19. The Inspection Service finds that Defendant 1's privacy statement did not provide any information regarding the processing activity in the context of the collection of unpaid invoices. It also notes that information regarding collection agencies was missing in the categories of recipients. Based on these elements, the Inspection Service finds that Defendant 1 violated articles 12.1, 13, and 14 of the GDPR.

20. First of all, Defendant 1 claims that it assumed that the data subjects already had the information in accordance with article 13 of the GDPR. However, this assertion is not supported by any evidence. Furthermore, Defendant 1 claims that it adapted the privacy statement on its website after the email from the Inspection Service. In the meantime, it would comply with the obligations of articles 12.1, 13, and 14 of the GDPR by providing useful information regarding the processing of personal data, clearly including the transfer of data to collection agencies.

21. Given that Defendant 1 presents no evidence showing that it could legitimately assume that the data subjects already had the information in question, the Contentious Chamber considers that this information under articles 12.1 and 13 of the GDPR should have been provided to the data subjects. Since Defendant 1 did not do so, the Contentious Chamber finds that Defendant 1 violated articles 12.1 and 13 of the GDPR.

22. Article 14 of the GDPR requires the data controller to provide certain information to the data subject when the personal data has not been obtained from them. In this case, nothing indicates that Defendant 1 collected personal data that was not obtained from the data subjects. The Contentious

Chamber therefore decides to dismiss this part of the case based on article 100, § 1, 1° of the LCA.

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II.3. Regarding the violation of article 30 of the GDPR by Defendant 1

23. The Inspection Service found that in its record of processing activities, Defendant 1 did not include information regarding the processing of personal data in the context of the collection of unpaid invoices. Furthermore, the Inspection Service notes that Defendant 1 did not include the name and contact details of the data controller and the data protection officer in its record of processing activities. Consequently, the Inspection Service finds that Defendant 1 violated article 30.1 of the GDPR due to the incomplete nature of the record of processing activities.

24. Defendant 1 first claims that it established the record using a template received from Kind & Gezin, and that it was entitled to assume in good faith that this template met all legal requirements. Secondly, it argues that it has already made the necessary adjustments. Its record now clearly mentions "collection of unpaid invoices" and also specifies their purpose, the data subjects, the source of the data, the data, the recipient of the data, the legal basis, and the retention with Defendant 2 on the client's web platform.

25. The Contentious Chamber recalls that under articles 5.2 and 24.1 of the GDPR, data controllers are themselves responsible for taking appropriate technical and organizational measures to ensure and be able to demonstrate that processing is performed in accordance with this regulation. Defendant 1 cannot invoke a template it received from a third party to escape this responsibility. The Contentious Chamber finds that Defendant 1 violated article 30 of the GDPR.

III. Motivation regarding Defendant 2

III.1. Preliminary remarks

26. First of all, Defendant 2 claims that the DPA did not act as a fully independent supervisory authority within the meaning of article 52.1 of the GDPR. The case would have been handled by the Contentious Chamber and examined by the Inspection Service before the members of these bodies were appointed by the House of Representatives. Moreover, Defendant 2 claims that the Inspectors General who intervened in the case were not sufficiently independent. Therefore, Defendant 2 asserts that the complaint should be dismissed. However, Defendant 2 does not concretely demonstrate anywhere that the DPA did not act as a fully independent supervisory authority, or that the Inspectors General who intervened in the case were not sufficiently independent. Defendant 2 does not provide concrete factual elements indicating that

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the members and General Inspectors did not act independently. The Litigation Chamber therefore decides to reject this argument.

27. Secondly, Defendant 2 claims that no violation not covered by the complaint can be attributed to him. According to Defendant 2, the Inspection Service could not lawfully extend the scope of its investigation and had to limit itself to the framework of the complaint and the mandate granted to it by the Litigation Chamber. The Litigation Chamber refers in this regard to section II.1 of this decision.

III.2. Regarding the violations within the scope of the complaint (Articles 5.1.a), 12, 17, and 25 of the GDPR)

28. The Litigation Chamber observes that Findings 3 and 4 of the Inspection Service share the same factual basis. In the interest of efficiency and analytical unity, these points will be addressed jointly.

29. Defendant 2 received erroneous information about the complainant from Defendant 1, which he claims initiated an unjustified recovery procedure. Following communication on this matter, the complainant submitted a request for the deletion of his personal data to Defendant 2 on December 11 (before the GDPR came into effect) and again on June 18, 2018.

30. Article 17.1 of the GDPR grants the data subject the right to obtain the deletion of personal data and obliges the data controller to delete such personal data without delay when one of the following grounds applies:

"a) the personal data are no longer necessary for the purposes for which they were collected or otherwise processed;

[...]

d) the personal data have been processed unlawfully;

[...]"

31. The Inspection Service stated that since Defendant 1 requested Defendant 2 to terminate the recovery procedure, the personal data were no longer necessary for the purposes for which they were processed. Based on paragraph 1. a) of Article 17 of the GDPR, the complainant was therefore entitled to deletion. The Litigation Chamber nuances this position. The complainant's personal data were transmitted to Defendant 2 based on erroneous information. Thus, there was a lack of a valid legal basis from the outset of the data processing, and the complainant's right to deletion arises from paragraph 1. d) of Article 17 of the GDPR.

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32. Defendant 2 informed the complainant on June 25, 2018, that his personal data would be deleted. However, an email was retained due to a technical error, later resulting in the creation of a second recovery file and the sending of a new payment request to the complainant.

33. The failure to delete all personal data constitutes a violation of Article 17 of the GDPR.

34. Defendant 2 argues in its conclusions that it cannot be blamed for failing to delete a single email. However, the Litigation Chamber reminds that the retention of an email constitutes processing, and that according to Article 24.1 of the GDPR, data controllers must implement appropriate technical and organizational measures to ensure and be able to demonstrate that processing is performed in accordance with the GDPR. The failure to take appropriate technical and organizational measures to ensure complete deletion can therefore be attributed to the data controller.

35. In light of these elements, the Litigation Chamber finds that Defendant 2 violated Article 17 of the GDPR by failing to delete all of the complainant's personal data.

36. Following the initial error, which led to the erroneous resumption of the recovery procedure, Defendant 2 decided to pseudonymize the personal data instead of deleting them. During the hearing on March 24, 2025, the Litigation Chamber asked Defendant 2 whether this was a general policy of Defendant 2, namely that data should be pseudonymized rather than deleted. The DPO of Defendant 2 responded that Defendant 2 deletes data when they have been transmitted in error by the requester, for example, because payment has already been made. When a data subject requests deletion, the data is pseudonymized by Defendant 2 instead of being completely deleted. This implies that part of the personal data is deleted while certain data is retained.

37. The Litigation Chamber reminds that pseudonymized data still qualifies as personal data under Article 4.1 of the GDPR (see also Article 4.5 of the GDPR). By pseudonymizing personal data instead of deleting it, following a request under Article 17 of the GDPR, Defendant 2 refuses to comply with the right to deletion. Unless an exception provided for in Article 17.3 of the GDPR can be invoked, which is not the case here, the refusal to delete personal data constitutes a violation of Article 17 of the GDPR.

38. The Litigation Chamber finds that Defendant 2 violated Article 17 of the GDPR firstly by not fully deleting the data and secondly by only pseudonymizing it instead of deleting it.

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III.3. Regarding the violation outside the scope of the complaint (Article 38.6 of the GDPR)

39. Article 38.6 of the GDPR states that the Data Protection Officer (hereinafter: DPO) may perform other missions and tasks. The data controller is obliged to ensure that these missions and tasks do not lead to a conflict of interest.

40. In its investigation report, the Inspection Service found a "possible conflict of interest" due to the dual role of DPO and Compliance Officer. It noted that Defendant 2 had not implemented any measures to prevent conflicts of interest.

41. Defendant 2 claims in its conclusions that the Inspection Service only writes conditionally and does not concretely demonstrate the existence of a genuine conflict of interest anywhere. Furthermore, it argues that it had indeed taken measures to avoid conflicts of interest and that since May 14, 2021, it has had an external DPO, who also appeared before the Contentious Chamber during the hearing. This external DPO does not combine the role of DPO with that of Compliance Officer.

42. Given the measures taken by Defendant 2 after the Inspection Service's investigation, the Contentious Chamber considers that this element of the case does not require further action.

Considering the effective and efficient exercise of its tasks, the Contentious Chamber decides, based on Article 100, § 1, 6° of the LCA, to close this case without further action insofar as it concerns a potential violation by Defendant 2 of Article 38, paragraph 6 of the GDPR.

IV. Measures

43. Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° close the complaint without further action;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with requests from the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the data recipients;

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- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the case to the Public Prosecutor's Office of the King of Brussels, which will inform it of the follow-up given to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

IV.1. Measures concerning Defendant 1

44. The Contentious Chamber finds that Defendant 1 violated Articles 12.1, 13 of the GDPR by not providing sufficient information to the data subjects. Furthermore, the Contentious Chamber found that Defendant 1 violated Article 30 of the GDPR due to its incomplete record of processing activities.

45. The Contentious Chamber takes into account the mitigating circumstances mentioned by the Inspection Service in the inspection report, particularly the measures that Defendant 1 has taken to remedy these violations. Therefore, imposing an administrative fine is not considered.

46. The Contentious Chamber decides to issue a reprimand, pursuant to Article 100, § 1, 5° of the LCA, regarding the violation of Articles 12.1, 13, and 30 of the GDPR.

IV.2. Measure concerning Defendant 2

47. The Contentious Chamber found that Defendant 2 violated Article 17 of the GDPR first by not fully erasing the data and then by only pseudonymizing it rather than erasing it.

48. The Contentious Chamber decides, based on Article 100, § 1, 6° of the LCA, to order Defendant 2 to comply with the request of the data subject to exercise their right to erasure by fully erasing their data.

49. Furthermore, the Contentious Chamber decides to issue a reprimand, pursuant to Article 100, § 1, 5° of the LCA, following the violation of Article 17 of the GDPR.